Zeba Khan & 2 Others vs State Of U.P. & Another on 14 November, 2018

Equivalent citations: AIRONLINE 2018 ALL 4708

Author: Rajeev Misra

Bench: Rajeev Misra

HIGH COURT OF JUDICATURE AT ALLAHABAD

A.F.R.

Reserved on 07.09.2018

Delivered on 14.11.2018

Court No. - 44

Case :- CRIMINAL REVISION No. - 3056 of 2017

Revisionist :- Zeba Khan & 2 Others

Opposite Party :- State Of U.P. & Another

Counsel for Revisionist :- Dharmendra Singhal,Vikrant Gupta

Counsel for Opposite Party :- G.A.,S.M. Nazar Bokhari,Syed Ashraf Ali,Waris

Hon'ble Rajeev Misra,J.

1. The present criminal revision is directed against the judgment and order dated 18th August, 2017 passed by the Additional Sessions Judge, Fast Track, Court No.1, Rampur in Criminal Appeal No. 17 of 2017 (Zakawat-ullah Khan vs. State of U.P. & Others), whereby the aforesaid criminal appeal preferred by the opposite party no.2 herein, has been allowed and the order dated 16th March, 2017

passed by the Additional Chief Judicial Magistrate, Rampur in Complaint Case No. 246 of 2016 (Zeba Khan & Others vs. Zakawat-ullah Khan), rejecting the preliminary objections filed by the opposite party no.2 disputing the jurisdiction of the Court at Rampur to try the complaint case filed by the revisionists has been set aside.

2. I have heard Mr. Dharmendra Singhal, the learned counsel for the revisionists, the learned A.G.A. for the State and Mr. Syed Ali Warsi, the learned counsel for the opposite party no.2.

3. From the perusal of the complaint filed by the revisionists, which is on the record as Annexure-1 to the affidavit, it is gathered that the marriage of the revisionist no.1 Zeba Khan was solemnized with the opposite party no.2 Zakawat-ullah Khan on 25th February, 1998 in accordance with the Muslim Rites and Customs. After marriage, the revisionist no.1 came to her marital home, which is a shared household at Aligarh. From the wedlock and co-habitation of the revisionist no.1 and the opposite party no.2, two daughters, namely, Zuba Khan and Johareen Khan were born on 13th November, 2000 and 16th October, 2007 respectively. The parties lived together in the shared household at Aligarh. Subsequently, the opposite party no.2 was employed abroad and, therefore, the revisionist no.1 along with her two daughters, who are the revisionist nos. 2 and 3 herein started residing with the opposite party no.2 in the United Arab Emirates. It has come on record that after a fairly long stay abroad, the parties returned to India and started residing in the shared household at Aligarh.

4. However, since beginning the relationship between the revisionist no.1 i.e. the wife and the opposite no.2 i.e. the husband were not cordial and smooth. As such, they were not leading a happy married life. With the passage of time, the relationship rather became incompatible. It got filled with venom of hatred and ill-will for the lust of dowry on the part of the opposite party no.2. The wife/revisionist no.1 was ill-treated and rather tortured for the demand of dowry by the opposite party no.2. The revisionist no.1 being an educated and sensitive lady, as she had been brought up in an academic atmosphere, ignored all the aspersions cast upon her and the atrocities committed upon her. She faced all the humiliation and cruelty perpetrated upon her by the opposite party no.2. Sacrificing her liberty and dignity at the alter of marriage, and in hope and trust that one day things will get better she continued to suffer the unbearable pain and agony forced upon her by the opposite party no.2. With the passage of time, things became unbearable. Ultimately the wife i.e. the revisionist no.1 along with her two daughters, who are the revisionist nos. 2 and 3 shifted at a rented place in Aligarh. Here also, her life was not at peace and she continued to be harassed by the opposite party no.2 resulting in several incidents of domestic violence. Though the revisionist no.1 along with her two daughters departed from the shared household in the hope that her life along with two daughters will be peaceful, her troubles were still not over. She was continuously tortured mentally and vocally by the opposite party no.2. At this stage, destiny also appears to have betrayed her when her real uncle died on 26th July, 2016 at Rampur. To lend support to the bereaved family, she along with her two daughters shifted to Rampur, where her uncle resided.

5. Being totally at her wits end and also faced with despair and destitution, she for the survival of her own self and her two minor daughters filed a petition dated 30th August, 2016 in the Court of the Additional Chief Judicial Magistrate, Rampur under Section 12 of the Protection of Women from

Domestic Violence Act, 2005 (hereinafter referred to as the "Act of 2005"). The said petition came to be registered as Criminal Misc. D.V. Petition No. 246 of 2016 (Zeba Khan & Others vs. Zakawat-ullah Khan). The revisionists by means of the said petition prayed for the grant of various benefits as admissible under Sections 19, 20, 21, 22, 23 of the Act of 2005.

6. Notices were issued on the aforesaid D.V. Petition to the opposite party no.2 herein namely, Zekawat-ullah Khan the husband of the revisionist.

7. The husband-opposite party no.2 appeared in the above mentioned case and filed a preliminary objection dated 20th February, 2017 disputing the jurisdiction of the Court i.e. the Court of the Additional Chief Judicial Magistrate, Rampur to hear and try the petition filed by the opposite party no.2 in terms of Section 12 of the Act of 2005. According to the opposite party no.2, the Court at Rampur had no jurisdiction to try and hear the complaint as no cause of action has accrued at Rampur. The applicants were not even temporarily residing at Rampur, therefore, the court at Rampur had no territorial jurisdiction to try and hear the complaint. This objection filed by the opposite party no.2 came to be dismissed by the Additional Chief Judicial Magistrate, Rampur vide order dated 16th March, 2017. The concerned Magistrate, while rejecting the preliminary objections filed by the opposite party no.2 concluded that prima facie the court at Rampur has jurisdiction to try the case by virtue of the provisions contained in Section 27 (a) of the Act of 2005. The Magistrate also referred to the pleadings raised in the D.V. Petition, and on the basis thereof concluded that no illegality can be found in the filing of the D.V. Petition at Rampur. The Magistrate was of the view that the question regarding territorial jurisdiction of the court to try a complaint is a mixed question of law and fact and the same can more appropriately be dealt with at the time of hearing of the complaint case.

8. Feeling aggrieved by the aforesaid order dated 16th March, 2017 passed by the Additional Chief Judicial Magistrate, Rampur, the opposite party no.2 herein i.e. the husband preferred a criminal appeal in terms of Section 29 of the Act of 2005 before the District & Sessions Judge, Rampur. The same was registered as Criminal Appeal No. 17 of 2017 (Zakawat-ullah Khan vs. State of U.P. & Others). The said criminal appeal came to be allowed by the Additional District and Sessions Judge, Court No.1, Rampur by means of the order dated 18th August, 2017. The court below, while deciding the appeal filed by the opposite party no.2, concluded that the revisionist no.1 along with her two daughters was residing at Aligarh and no cause of action has accrued to the revisionists at Rampur. The case of the revisionists that they are temporarily residing at Rampur is not established. Further more, their visit to Rampur can be said to be a case of casual stay or short stay.

9. Feeling aggrieved by the aforesaid order dated 18th August, 2017, the wife along with her two minor daughters, who are the revisionists have now come to this Court by means of the present criminal revision.

10. Mr. Dharmendra Singhal, the learned counsel for the revisionists in challenge to the impugned order urged with vehemence that the findings recorded by the court below in the impugned order are manifestly illegal. He next submits that the Act of 2005 is a special Act with an overriding effect, meaning thereby that the provisions of this Act shall be in addition to the provisions operating pari

materia and not in derogation of the same. Continuing his elaboration of the aforesaid submission, he submits that the jurisdiction of the Court to try a complaint has been crystallized in Section 27 of the Act of 2005 and therefore, the litmus test to decide the jurisdiction of the court to try a complaint under the Act of 2005 has to be judged in the light of the parameters laid down in Section 27 of the Act of 2005 itself.

11. On the aforesaid legal premise, it is contended that when the findings recorded by the Court below are examined in the back-drop of the aforesaid it is apparent that the court below has decided the issue of jurisdiction of the Magistrate concerned to try the complaint filed by the revisionists taking into consideration the principles underlying Section 178 of the Criminal Procedure Code. The reliance placed on the aforesaid principles are totally uncalled for as the said provisions cannot be relied upon for the purposes of interpreting the provisions of the Act of 2005. On the cumulative strength of the aforesaid submissions, it is urged that the place of filing the D.V. Petition by the revisionists is in-conformity with the conditions provided under Section 27 (a) of the Act of 2005. Drawing a parallel between the hardship and comfort in respect of the court in which the complaint was filed, he submits that it does not even stand to reason as to why a person who is residing at Aligarh shall file a complaint at Rampur when the distance between the two is 160 kilometers. The trial of a complaint under Section 12 of the Act of 2005 has to be in accordance with the provisions of Criminal Procedure Code, as per the mandate of Sections 12 and 28 of the Act, 2005, and Rule 6 (5) of the Protection of Women from Domestic Violence Rules, 2006. But the said provisions cannot be relied upon to urge that the provisions of Section 178 Cr.P.C. can be relied upon for deciding the jurisdiction of the Court to try the complaint. On the edifice of the aforesaid submissions, it is thus concluded by the learned counsel for the revisionists that the impugned order passed by the court below cannot be sustained in law or fact and therefore, liable to be quashed by this Court.

12. Mr. Syed Asharaf Ali Warsi, the learned counsel for the opposite party no.2 has supported the impugned order passed by the court below. According to the learned counsel for the opposite party no.2 no illegality was committed by the court below in allowing the appeal filed by the opposite party no.2, as the revisionists did not file any such material before the trial court on the basis of which the trial court could have retained its jurisdiction to try the case. The question of jurisdiction is a pure question of law and can be decided as a preliminary issue. Such question cannot be deferred for adjudication at the time of trial. He further submits that the impugned order does not forfeit the right of the revisionists to pursue the remedy under the Act of 2005, as only the place of filing the complaint has changed. The impugned judgment and order does not suffer from any jurisdictional error nor it is the outcome of the exercise of jurisdiction with material irregularity resulting in miscarriage of justice. As such, it is urged that the present criminal revision does not warrant any interference by this Court.

13. Learned A.G.A. has adopted the arguments advanced by the learned counsel for the opposite party no.2.

14. Before proceeding to consider the correctness of the rival submissions, it is necessary to take notice of certain provisions of the Act, which have a material bearing upon the controversy involved in this criminal revision. The conjoint reading and analysis of the provisions quoted herein below

will help in finding out the working procedure contemplated under the Act of 2005.

15. To begin with, reference be made to the definitions of the term aggrieved person as defined in Section 2 (a), "Domestic Relationship" as defined in Section 2 (f), Magistrate as defined in Section 2 (i) and "Shared Household" as defined in Section 2 (s) of the Act of 2005. Reference be also made to the definition of the term "Domestic Violence" as defined in Section 3 of the Act of 2005. For ready reference the same are quoted herein-under:

> "2. Definitions.--In this Act, unless the context otherwise requires,--
>
> (a) "aggrieved person" means any woman who is, or has been, in a domestic relationship with the respondent and who alleges to have been subjected to any act of domestic violence by the respondent;

.....

(f) "domestic relationship" means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage, or through a relationship in the nature of marriage, adoption or are family members living together as a joint family;

.....

(i) "Magistrate" means the Judicial Magistrate of the first class, or as the case may be, the Metropolitan Magistrate, exercising jurisdiction under the Code of Criminal Procedure, 1973 (2 of 1974) in the area where the aggrieved person resides temporarily or otherwise or the respondent resides or the domestic violence is alleged to have taken place;

.....

(s) "shared household" means a household where the person aggrieved lives or at any stage has lived in a domestic relationship either singly or along with the respondent and includes such a household whether owned or tenanted either jointly by the aggrieved person and the respondent, or owned or tenanted by either of them in respect of which either the aggrieved person or the respondent or both jointly or singly have any right, title, interest or equity and includes such a household which may belong to the joint family of which the respondent is a member, irrespective of whether the respondent or the aggrieved person has any right, title or interest in the shared household.

3. Definition of domestic violence.--For the purposes of this Act, any act, omission or commission or conduct of the respondent shall constitute domestic violence in case it--

(a) harms or injures or endangers the health, safety, life, limb or well-being, whether mental or physical, of the aggrieved person or tends to do so and includes causing physical abuse, sexual abuse, verbal and emotional abuse and economic abuse; or

(b) harasses, harms, injures or endangers the aggrieved person with a view to coerce her or any other person related to her to meet any unlawful demand for any dowry or other property or valuable security; or

(c) has the effect of threatening the aggrieved person or any person related to her by any conduct mentioned in clause (a) or clause (b); or

(d) otherwise injures or causes harm, whether physical or mental, to the aggrieved person. Explanation I.--For the purposes of this section,--

(i) "physical abuse" means any act or conduct which is of such a nature as to cause bodily pain, harm, or danger to life, limb, or health or impair the health or development of the aggrieved person and includes assault, criminal intimidation and criminal force;

(ii) "sexual abuse" includes any conduct of a sexual nature that abuses, humiliates, degrades or otherwise violates the dignity of woman;

(iii) "verbal and emotional abuse" includes--

(a) insults, ridicule, humiliation, name calling and insults or ridicule specially with regard to not having a child or a male child; and

(b) repeated threats to cause physical pain to any person in whom the aggrieved person is interested.

(iv) "economic abuse" includes--

(a) deprivation of all or any economic or financial resources to which the aggrieved person is entitled under any law or custom whether payable under an order of a court or otherwise or which the aggrieved person requires out of necessity including, but not limited to, household necessities for the aggrieved person and her children, if any, stridhan, property, jointly or separately owned by the aggrieved person, payment of rental related to the shared household and maintenance;

(b) disposal of household effects, any alienation of assets whether movable or immovable, valuables, shares, securities, bonds and the like or other property in which the aggrieved person has an interest or is entitled to use by virtue of the domestic relationship or which may be reasonably required by the aggrieved person or her children or her stridhan or any other property jointly or separately held by the aggrieved person; and

(c) prohibition or restriction to continued access to resources or facilities which the aggrieved person is entitled to use or enjoy by virtue of the domestic relationship including access to the shared The court below, while deciding the appeal filed by the opposite party no.2 has recorded the following findings:

household. Explanation II.--For the purpose of determining whether any act, omission, commission or conduct of the respondent constitutes "domestic violence" under this section, the overall facts and circumstances of the case shall be taken into consideration.

16. Apart from the above, reference may also be made to Section 12 of the Act of 2005, which is as follows:

12. Application to Magistrate.--

(1) An aggrieved person or a Protection Officer or any other person on behalf of the aggrieved person may present an application to the Magistrate seeking one or more reliefs under this Act: Provided that before passing any order on such application, the Magistrate shall take into consideration any domestic incident report received by him from the Protection Officer or the service provider.

(2) The relief sought for under sub-section (1) may include a relief for issuance of an order for payment of compensation or damages without prejudice to the right of such person to institute a suit for compensation or damages for the injuries caused by the acts of domestic violence committed by the respondent: Provided that where a decree for any amount as compensation or damages has been passed by any court in favour of the aggrieved person, the amount, if any, paid or payable in pursuance of the order made by the Magistrate under this Act shall be set off against the amount payable under such decree and the decree shall, notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908), or any other law for the time being in force, be executable for the balance amount, if any, left after such set off.

(3) Every application under sub-section (1) shall be in such form and contain such particulars as may be prescribed or as nearly as possible thereto.

(4) The Magistrate shall fix the first date of hearing, which shall not ordinarily be beyond three days from the date of receipt of the application by the court.

(5) The Magistrate shall endeavour to dispose of every application made under sub-section (1) within a period of sixty days from the date of its first hearing."

17. The reference made to Protection Officer or the Service Provider in proviso to sub-section (1) of Section 12 of the Act of 2005 is relateable to Sections 9 and 10 of the Act of 2005 which are referred to herein-below:

"9. Duties and functions of Protection Officers.--

(1) It shall be the duty of the Protection Officer--

(a) to assist the Magistrate in the discharge of his functions under this Act;

(b) to make a domestic incident report to the Magistrate, in such form and in such manner as may be prescribed, upon receipt of a complaint of domestic violence and forward copies thereof to the police officer in charge of the police station within the local limits of whose jurisdiction domestic violence is alleged to have been committed and to the service providers in that area;

(c) to make an application in such form and in such manner as may be prescribed to the Magistrate, if the aggrieved person so desires, claiming relief for issuance of a protection order;

(d) to ensure that the aggrieved person is provided legal aid under the Legal Services Authorities Act, 1987 (39 of 1987) and make available free of cost the prescribed form in which a complaint is to be made;

(e) to maintain a list of all service providers providing legal aid or counselling, shelter homes and medical facilities in a local area within the jurisdiction of the Magistrate;

(f) to make available a safe shelter home, if the aggrieved person so requires and forward a copy of his report of having lodged the aggrieved person in a shelter home to the police station and the Magistrate having jurisdiction in the area where the shelter home is situated;

(g) to get the aggrieved person medically examined, if she has sustained bodily injuries and forward a copy of the medical report to the police station and the Magistrate having jurisdiction in the area where the domestic violence is alleged to have been taken place;

(h) to ensure that the order for monetary relief under section 20 is complied with and executed, in accordance with the procedure prescribed under the Code of Criminal Procedure, 1973 (2 of 1974);

(i) to perform such other duties as may be prescribed.

(2) The Protection Officer shall be under the control and supervision of the Magistrate, and shall perform the duties imposed on him by the Magistrate and the Government by, or under, this Act.

10. Service providers.--

(1) Subject to such rules as may be made in this behalf, any voluntary association registered under the Societies Registration Act, 1860 (21 of 1860) or a company registered under the Companies Act, 1956 (1 of 1956) or any other law for the time being in force with the objective of protecting the rights and interests of women by any lawful means including providing of legal aid, medical, financial or other assistance shall register itself with the State Government as a service provider for

the purposes of this Act.

(2) A service provider registered under sub section (1) shall have the power to--

(a) record the domestic incident report in the prescribed form if the aggrieved person so desires and forward a copy thereof to the Magistrate and the Protection Officer having jurisdiction in the area where the domestic violence took place;

(b) get the aggrieved person medically examined and forward a copy of the medical report to the Protection Officer and the police station within the local limits of which the domestic violence took place;

(c) ensure that the aggrieved person is provided shelter in a shelter home, if she so requires and forward a report of the lodging of the aggrieved person in the shelter home to the police station within the local limits of which the domestic violence took place.

(3) No suit, prosecution or other legal proceeding shall lie against any service provider or any member of the service provider who is, or who is deemed to be, acting or purporting to act under this Act, for anything which is in good faith done or intended to be done in the exercise of powers or discharge of functions under this Act towards the prevention of the commission of domestic violence."

18. The conjoint reading of the aforesaid provisions point out the domestic violence, which is legally redressable and the person, who is aggrieved by such domestic violence. However, the same does not decide the place where the aggrieved person can go for redressal of her grievance, as dealt with by the provisions of the Act of 2005. The same is to be decided as per the provisions of Section 27 of the Act of 2005. Therefore, the provisions of Section 27 of the Act, 2005 are accordingly, quoted herein-below:

> "27. Jurisdiction.--(1) The court of Judicial Magistrate of the first class or the Metropolitan Magistrate, as the case may, be, within the local limits of which--
>
> (a) the person aggrieved permanently or temporarily resides or carries on business or is employed; or
>
> (b) the respondent resides or carries on business or is employed; or
>
> (c) the cause of action has arisen, shall be the competent court to grant a protection order and other orders under this Act and to try offences under this Act.
>
> (ci) Any order made under this Act shall be enforceable throughout India."

19. In the light of the provisions quoted herein above the Court has now to cull out the working procedure which will emerge from the conjoint reading of the aforesaid provisions itself. In order to

discover the same the following issues arise for determination to unearth the working procedure embodied in the Act of 2005.

(a) Whether the exercise of jurisdiction under the Act of 2005 is dependent upon the report of the Probation Officer or the Service Provider and the place from which such report has originated shall decide the jurisdiction of the Court to try a petition under the Act of 2005?

(b) Whether the conditions provided under Section 27 of the Act are singularly sufficient enough to decide the place of suing or all the conditions mentioned in the said Section are to be satisfied collectively to decide the Court in which the complaint can be filed?

(c) The word "cause of action" occurring Section 27 (c) of the Act of 2005 is to be construed in the light of the provisions contained in Section 27 (a) and Section 27 (b) of the Act of 2005 or independently of the aforesaid?

(d) What is the meaning of the term "cause of action" and how it shall be proved in reference to Section 27 (c) of the Act of 2005?

20. Issue no. 1 relates to the exercise of jurisdiction by the Magistrate on a petition filed by an aggrieved person with reference to Sections 9 and 10 of the Act of 2005. Section 9 of the Act deals with Protection Officer, whereas Section 10 of the Act deals with Service Providers. I have already quoted the provisions of Sections 9 and 10 of the Act of 2005. As such the same are not being repeated here. The issue arises as to whether the Court can exercise its jurisdiction under the Act of 2005 only after the submission of the report by the Protection Officer or the Service Provider and the place from which such report has originated will be the guiding factor to decide the place of suing.

21. The aforesaid issue is no longer res integra. The same has been exhaustively dealt with in the case of Eshan Joshi Versus Suman, decided on 23rd January, 2018 by the High Court of Punjab and Haryana and reported in 2018 (1) R.C.R. (Criminal) 931. In the aforesaid judgment, the Punjab and Haryana High Court has extensively dealt with the said issue and the following was observed in Paragraph Nos. 11, 12 & 13:

> "11. Section 27 of the DV Act reads as under:-
>
> "Jurisdiction - (1) The Court of Judicial Magistrate of the first class or the Metropolitan Magistrate, as the case may be, within the local limits of which -
>
> (a) the person aggrieved permanently or temporarily resides or carries on business or is employed; or
>
> (b) the respondent resides or carries on business or is employed; or

(c) the cause of action has arisen, shall be the competent court to grant a protection order and other orders under this Act and to try offences under this Act.

(2) Any order made under this Act shall be enforceable throughout India."

Learned counsel appearing on behalf of the petitioner argues that a bare reading of the said Section would show that only such courts are competent to entertain a complaint where the aggrieved person/respondent permanently or temporarily resides or carries on business or is employed, or where cause of action arises. It is argued that merely on account of the fact that the respondent herein is temporarily residing with her sister, the court at Chandigarh would not have jurisdiction to entertain the complaint. In this regard, reliance has been placed upon judgment rendered by the Apex Court in Advocate Ramesh Mohanlal Bhutada and another vs. State of Maharashtra and others, 2012 (1) RCR (Cr.) 461, in which it has been held that meaning of expression "resides" in Section 12 implies something more than a causal stay and implies some concrete intention to stay at a particular place, and not merely to pay a casual or flying visit. It is argued that the complaint itself would reveal that the son of the respondent is studying at Bangalore, therefore, there is no occasion for her to invoke the jurisdiction of the courts at Chandigarh.

12. Per contra, learned counsel appearing on behalf of the respondent argued that the parties were residing at Bangalore, when a matrimonial dispute arose and at that time the son of the respondent was studying at Bangalore and in order not to disrupt his studies, he was allowed to continue the study at Bangalore. As of now, he is studying within the local jurisdiction of the tricity of Chandigarh.

13. The question regarding territorial jurisdiction has been raised before several High Courts in Hima Chugh vs. Pritam Ashok Sadaphule & Ors, 2013(19) RCR (Criminal) 161, Sharad Kumar Pandey vs. Mamta Pandey, 2010 (7) RCR (Criminal) 1389, Rabindra Nath Sahu and anther vs. Smt. Susila Sahu, 2017(1) RCR (Criminal) 312, Vikas Rastogee vs. State of U.P. and another, 2014(16) RCR (Criminal) 73. In Hima Chugh and Sharad Kumar Pandey(supra), Delhi High Court has held that temporary residence means where an aggrieved person is compelled to take shelter or to take job or do some business, in view of domestic violence within her matrimonial home. However, temporary residence does not include residence in a lodge or hostel or an inn or taking up residence at a place only for filing a domestic violence case. It must not be a fleeting residence, where a woman comes only for contesting the case and otherwise does not reside there. In Rabindra Nath Sahu and another (supra) Orissa High Court has held that temporary residence includes a place where an aggrieved person was compelled to reside in view of commission of domestic violence, where she may not have decided to reside permanently or for a considerable length of time, but for the time being. In Vikas Rastogee (supra) Hon'ble Allahabad High Court has held that aggrieved person can initiate proceedings from temporary residence and that question of temporary residence is a mixed question of law and fact and cannot be decided by Revisional Court."

22. From a perusal of the aforesaid paragraphs it is crystal clear that the existence of a report by the Protection Officer or the Service Provider is not a condition precedent for filing a complaint. Sections 9 and 10 of the Act do not contemplate the filing of a petition by an aggrieved person within

whose territorial jurisdiction the Service Provider or the Protection Officer resides. It shall be useful to refer to Paragraph Nos. 8, 10 and 14 of the judgment in the case of Eshan Joshi (Supra) wherein the said issue has been dealt with in length and detail:

> "8. This court is seized of the following questions;
>
> i) Whether the instant petition is maintainable in its present form?
>
> ii) Whether the courts here at Chandigarh would have territorial jurisdiction to entertain the instant complaint under the DV Act?
>
> iii) Whether there has been concealment of facts regarding the pendency of FIR No.1022 registered under Sections 498-A, 506, 504 of Indian Penal Code and Sections 3/4 of Dowry Prohibition Act at police Station HSR Bangalore by the respondent and whether such concealment would dis-entitle the respondent to any relief ?
>
> iv) Whether the proceedings under the DV Act could be initiated without a report of Protection Officer?

.....

10. The Hon'ble Supreme Court in Dhariwal Tobacco Products Limited and others vs. State of Maharashtra and another, 2009 (1) R.C.R. (Criminal) 677: (2009) 2 Supreme Court Cases 370, was seized of the question whether an application under Section 482 of Code of Criminal Procedure, 1973 (for short 'the Code') can be dismissed on the grounds that an alternative remedy of filing a revision petition under Section 397 of the Code is available. In the aforesaid case, company and its Directors were summoned by the JMIC Akkalkot, Solapur under the provisions of Prevention of Food Adulteration Act. An application was filed under Section 482 of the Code against the said summoning order, which was dismissed by the High Court on the ground that there was an alternative remedy of filing a revision petition under Section 397 of the Code. That order was challenged before the Apex Court and after taking note of settled case law, it was held that the High Court has inherent power under Section 482 of the Code, even though there is an alternative remedy available. Similarly in Krishnan vs. Krishnaveni and another, 1997(1) RCR (Criminal) 724, it has been held that a High Court under its inherent powers under Sections 482 and 483 of the Code, is justified in interfering with an order, which would lead to miscarriage of justice and can interfere, even though remedy of appeal/revision has not been availed of. Since the petitioner is seeking to challenge the very complaint, itself being without jurisdiction under Section 482 Cr.P.C., the High court with its vast inherent powers would be able to entertain this petition to ensure there is no abuse of the process of law. Therefore, this question is answered against the respondent.

.....

14. Section 27 of the DV Act permits a Court to entertain a complaint of a person residing temporarily within its jurisdiction. Needless to say that after being subjected to domestic violence, it may not be possible for a woman to reside within the same jurisdiction as where the incident of domestic violence occurred and would shift and relocate to a place where she can reside/pick up a job or has some support, be it with her parents of near kith and kin. In the instant case, the respondent is residing with her sister, a close kith and kin after she left Bangalore and her matrimonial home. The son of the respondent is now studying within the tricity of Chandigarh, as would be evident from the school fee receipts that have been annexed. The argument raised that son of the respondent was studying in Bangalore and residence in Chandigarh is fleeting, is not sustainable. The minor child was studying and stayed in Bangalore only to complete his session and not be shifted midterm. Therefore it cannot be said that the respondent is residing with her sister only on account of filing of complaint under the DV Act and courts at Chandigarh would not have jurisdiction to entertain the complaint."

23. I do not see any reason to defer with the view taken by the Punjab and Haryana High Court in the above mentioned case. Thus, on the sum total of the provisions contained in Sections 9 and 10 of the Act of 2005 as well as on the conjoint reading of the different provisions of the Act of 2005 which tends to point out the working of the Act of 2005, it can be safely assumed that the Court seized of a complaint as provided under the Act of 2005 is not bound to proceed with the complaint in the absence of the report of the Protection Officer and Service Provider. Therefore, irrespective of the reports being submitted or not by the Protection Officer/Service Provider the Court can suo moto proceed with the admission/hearing of the complaint filed by the aggrieved party.

24. Issue no.2 as framed herein above is regarding the scope of Section 27 of the Act of 2005. What will be criteria adopted by the Court to decide its own jurisdiction to try a complaint under the Act of 2005 is provided in Section 27 of the Act of 2005 itself. A perusal of Section 27 of the Act would reveal that three contingencies are provided therein to decide the jurisdiction of the Court to try the complaint. Section 27 of the Act of 2005 has already been quoted above and therefore, the same is not being reproduced to avoid repeation. The issue that requires scrutiny by the Court is whether each of the contingencies provided for in Section 27 of the Act of 2005 are to be cumulatively satisfied or a singular contingency by itself is sufficient to decide the jurisdiction of the Court to try the complaint.

25. The contingencies provided in Section 27 of the Act of 2005 are not homogeneous but heterogeneous. As the contingencies provided in the Act of 2005 are heterogeneous in character, it is impossible for a complainant to satisfy all the contingencies provided for in Section 27 of the Act of 2005 simultaneously. But even otherwise in order to fulfill the paramount object of the statute that has been framed to cater the urgent need of addressing domestic violence which puts the aggrieved person in despair and destitution, the provisions of the statute have, therefore, to be construed in a manner that promotes the object of the Act without any substantial prejudice to either of the parties and without offending their rights as enshrined under the Act. Therefore, by the very nature of the contingencies enumerated in Section 27 of the Act of 2005, one single contingency alone shall be sufficient to decide the jurisdiction of the Court to try the complaint.

26. At this stage reference may be made to the judgment of the Delhi High Court in the case of Ram Lakhan Singh Versus Union of Indian & Another, reported in 2013 SCC OnLine Del 4844, wherein the following has been observed in paragraph nos. 22 and 23:

> "22. If we look at Section 26 of the Act, the a4ggrieved person is permitted to pursue other reliefs along with the reliefs provided under the Act, and it makes very clear the intention of the legislature. While looking at or interpreting each and every provision of the Act, we have to look at the intention of the legislature. In the process, we have to look at what has been said and what has not been said to be noted. In the cases of violence against women under the D.V. Act, the moment she files a complaint, she is thrown out of the house and in several cases, there is threat and there is no security to the lady at the matrimonial place and she forced to flee to safety. In such cases the victim of domestic violence finds shelter in the parents house, in certain cases, parents won t be able to support the lady basing on several reasons and the lady is forced to live at some other place in search of employment or to pursue some course which will fetch her a job, so that she will have the financial independence. In such a scenario, if the Section specifically says that to claim "temporary residence", the lady has to stay in a particular place for a specified period, in majority of the cases, women have to prefer a complaint at the place where the husband resides, where she has no safety and protection in several cases. If the interpretation of the petitioner is taken to be correct, such interpretation would defeat the legislative intent behind the enactment of the Act and it would render the provisions nugatory. In construing the provisions of the Act, the Court has to bear in mind that it is a beneficial piece of social welfare legislation aimed at promoting and securing the wellbeing of the aggrieved persons and the Court will not adopt a narrow interpretation which will have the effect of defeating the very object and purpose of the Act. It must be interpreted in the spirit in which the same has been enacted. The legislature in its wisdom thought it appropriate not to specify the time limit for claiming "temporary residence", in view of the practical problems that will be faced by the aggrieved person, and it is not for this Court to take up the task of interpreting the section, when the words and intention of the legislature is very much clear. We are of the considered opinion that Section 27(1) of the D.V. Act is not unconstitutional and the same is in consonance with the objectives and reasons for which the Act has been enacted and the provision is not contrary to the fundamental rights guaranteed under the Constitution of India and further we are of the view that a beneficial legislation is intended to achieve a much greater purpose and the very purpose of enacting such law would be frustrated if stringent rules of construction are applied. What is a "temporary residence" depends and varies from the facts and circumstances of each case and there cannot be any straight jacket formula. At the same time, we cannot lose sight of the fact that certain legislations which were enacted for the benefit of a particular sect of people are exploited or taken undue advantage of. In such cases, courts have to be very careful and see that there is no room left for exploitation.

> 23. Now, we would like to deal with the second issue whether the Court at Delhi has got jurisdiction to entertain the complaint filed by the 2nd respondent. It is the specific case of the petitioner that no part of cause of action has taken place at Delhi and only for the purpose of Forum shopping she invoked the jurisdiction by saying that she is pursuing the course. It is the case of the 2nd respondent that after she left her matrimonial house at Bombay, she has been staying at Delhi along with her cousin and she is not residing with her parents at Gurgaon, and she is unable to shift to her own flat as the son of the petitioner is not providing her with any maintenance even after passage of year and four months after the marriage. It is an admitted fact that the respondent was pursuing her course at Delhi, and nothing has been placed on record to show that she is not residing at Delhi, except stating that her course is only for a period of four months. We are afraid we cannot agree with the reasoning of the petitioner and we are of the view that the complaint is maintainable and the courts at Delhi have jurisdiction in view of Section 27(1)(b) of the Act."

27. The Orissa High Court in the case of Rabindra Nath Sahu & Another Versus Smt. Susila Sahu, reported in 2016 Cr.L.J. 4931, while dealing with a similar issue as in hand has observed as follows in paragraph 10:

> "10. The legislature in its wisdom has provided that jurisdiction can be invoked by an 'aggrieved person' before the competent Court on the basis of temporary residence. The word "temporarily" means lasting, existing, serving for a time only which is not permanent. A temporary residence is a temporary dwelling place of the aggrieved person who has for the time being decided to make that place as her home. An aggrieved person who has lost her matrimonial home due to domestic violence and was not even allowed to stay at her ancestral house or at her father's place for some reason or the other and is compelled to take residence, though temporarily, either with one of her relatives or with one of her friends at a place where the domestic violence was not committed can invoke the jurisdiction of the Magistrate within whose local limits such place of temporary residence situates. The temporary residence includes a place where the aggrieved person was compelled to reside in view of commission of domestic violence. She may not have decided to reside there permanently or for a considerable length of time but for the time being. A place where the aggrieved person has gone on a casual visit, a lodge or hostel or a guest house or an inn where she stays for a short period or a residence at a place simply for the purpose of filing a case against another person cannot be a place which would satisfy the term "temporarily resides" as appears in section 27. The legislature has provided the aggrieved women who are financially, economically or physically abused wide options to institute a case which best suited their convenience, comfort and accessibility. Section 2(i) of 2005 Act indicates "Magistrate" means the Judicial Magistrate of the First Class, or as the case may be, the Metropolitan Magistrate, exercising jurisdiction under the Code of Criminal Procedure, 1973 (2 of 1974) in the area were the aggrieved person resides temporarily or otherwise or the respondents resides or the domestic violence is alleged to have taken place. Thus even if for a

temporary period of time, an aggrieved person is residing at a place, she can seek reliefs under the 2005 Act by filing an appropriate application before the competent Court within the local limits whose jurisdiction such place situates."

28. The Bombay High Court in the case of Advocate Ramesh Versus State of Maharashtra, reported in MANU/MH/0826/2011 in almost similar circumstances has observed as follows in paragraph nos. 4 and 5:

" 4. I have heard submissions at the Bar, at length. A cursory glance at the provisions of Section 27 of the Act of 2005 would reveal that the Judicial Magistrate of the First Class within whose local limits the person aggrieved permanently or temporarily resides or carries on business or employed; or the Respondent resides or carries on business or is employed; or the cause of action has arisen, shall be the competent Court to grant a protection order and other orders under this Act and to try offences under this Act. Sub-section (2) states that the order made under this Act shall be enforceable throughout India. The order passed under the Act of 2005 by the Magistrate is appealable in view of section 29 of the said Act.

5. In support of the petition, it is submitted on behalf of the Petitioners that there is distinction between temporary residence and casual visit. The expression "reside" implied something more than "stay" and implied some intention to remain at a place and not merely to pay it a casual visit. The question of residence is required to be decided as to whether the party claiming residence, permanent or temporary, has an intention to stay at a particular place then alone it could be said that the party is residing at that particular place, either permanently or even temporarily. The question as to whether aggrieved person has made a particular place an abode, permanent or temporary, is a question to be decided with reference to facts of each case. It is apprehended that if liberal construction is placed upon the provisions made under section 27 of the Act to allow even casual visit of the place to claim that the place is his or her temporary residence within the meaning of Section 27 of the Act 2005, then it may lead to abuse of the legal process as the aggrieved person may choose to harass the other party by choosing any place where he or she may be a casual visitor. Reference is made to the ruling in Mst. Jagirkaur and Anr. v. Jaswant Singh . The Apex Court was dealing with the question relating to the term "resides" in respect of petition by a wife against her husband for maintenance. Considering the dictionary meaning of the word "resident" the Apex Court has observed that the word means both a permanent dwelling as well as temporary living in a place. It is capable of different meanings including domicile in the strictest and the most technical sense and a temporary residence. Whichever meaning is given to it one thing is obvious that it does not include casual stay or a flying visit to a particular place. In short, the meaning of the word would, in the ultimate analysis, depend upon the context and the purpose of a particular statute. The expression "reside" implies something more than a casual stay and implies some concrete intention to remain at a particular place but not merely to pay a casual or flying visit. In other words, it is always something

more than a casual visit or casual stay at a particular place to assign status to the person as "temporary resident" of a particular place is contemplated under the law."

29. This takes me to the third issue i.e. the meaning of the term "cause of action" occurring in Section 27 (c) of the Act of 2005. The term "cause of action" is no longer debatable. The Apex Court in the case of M/S. Kusum Ingots & Alloys Ltd. Versus Union of India & Another, reported in 2004 (6) SCC 254, has dealt with the aforesaid concept and observed as follows in paragraph nos. 6 to 11:

"Cause of Action:

6. Cause of action implies a right to sue. The material facts which are imperative for the suitor to allege and prove constitutes the cause of action. Cause of action is not defined in any statute. It has, however, been judicially interpreted inter alia to mean that every fact which would be necessary for the plaintiff to prove, if traversed, in order to support his right to the judgment of the Court. Negatively put, it would mean that everything which, if not proved, gives the defendant an immediate right to judgment, would be part of cause of action. Its importance is beyond any doubt. For every action, there has to be a cause of action, if not, the plaint or the writ petition, as the case may be, shall be rejected summarily.

7. Clause (2) of Article 226 of the Constitution of India reads thus:

"226. (2) The power conferred by clause (1) to issue directions, orders or writs to any Government, authority or person may also be exercised by any High Court exercising jurisdiction in relation to the territories within which the cause of action, wholly or in part, arises for the exercise of such power, notwithstanding that the seat of such Government or authority or the residence of such person is not within those territories."

8. Section 20(c) of the Code of Civil Procedure reads as under:

"20 Other suits to be instituted where defendant reside or cause of action arises. -Subject to the limitation aforesaid, every suit shall be instituted in a court within the local limits of whose jurisdiction -

(c) the cause of action, wholly or in part, arises."

9. Although in view of Section 141 of the Code of Civil Procedure the provisions thereof would not apply to a writ proceedings, the phraseology used in Section 20(c) of the Code of Civil Procedure and Clause (2) of Article 226, being in pari materia, the decisions of this Court rendered on interpretation of Section 20(c) of CPC shall apply to the writ proceedings also. Before proceeding to discuss the matter further it may be pointed out that the entire bundle of facts pleaded need not constitute a cause of action as what is necessary to be proved before the petitioner can obtain a decree is the material facts. The expression material facts is also known as integral facts.

10.Keeping in view the expressions used is Clause (2) of Article 226 of the Constitution of India, indisputably even if a small fraction of cause of action accrues within the jurisdiction of the Court, the Court will have jurisdiction in the matter.

11. In Mussummat Chand Kour v. Partap Singh (15 IA 156), it was held:

> "... the cause of action has no relation whatever to the defence which may be set up by the defendant, nor does it depend upon the character of the relief prayed for by the plaintiff. It refers entirely to the ground set forth in the plaint as the cause of action, or, in other words, to the media upon which the plaintiff asks the court to arrive at a conclusion in his favour."

30. In the case of Kuldeep Singh Pathaniya Versus Bikram Singh Jaryal reported in 2017 (5) SCC 345, the following has been observed in paragraph nos. 11, 12 & 13:

> "In Mayar (H.K.) Ltd. and others v. Owners & Parties, Vessel M.V. Fortune Express and others[1], this Court has dealt with a similar issue. To the extent relevant, paragraph-12 reads as follows:
>
> "12. From the aforesaid, it is apparent that the plaint cannot be rejected on the basis of the allegations made by the defendant in his written statement or in an application for rejection of the plaint. The court has to read the entire plaint as a whole to find out whether it discloses a cause of action and if it does, then the plaint cannot be rejected by the court exercising the powers under Order 7 Rule 11 of the Code. Essentially, whether the plaint discloses a cause of action, is a question of fact which has to be gathered on the basis of the averments made in the plaint in its entirety taking those averments to be correct. A cause of action is a bundle of facts which are required to be proved for obtaining relief and for the said purpose, the material facts are required to be stated but not the evidence except in certain cases where the pleadings relied on are in regard to misrepresentation, fraud, wilful default, undue influence or of the same nature. So long as the plaint discloses some cause of action which requires determination by the court, the mere fact that in the opinion of the Judge the plaintiff may not succeed cannot be a ground for rejection of the plaint."

12. It is not necessary to load this judgment with other judgments dealing with this first principle of Order VII Rule 11(a) of the Code. As held by this Court in Virender Nath Gautam v. Satpal Singh and others[2], at paragraph-52:

> "52. The High Court, in our considered opinion, stepped into prohibited area of considering correctness of allegations and evidence in support of averments by entering into the merits of the case which would be permissible only at the stage of trial of the election petition and not at the stage of consideration whether the election petition was maintainable and dismissed the petition. The said action, therefore, cannot be upheld and the order deserves to be set aside."

13. As we have been taken through the averments in the election petition and we are satisfied that the petition has disclosed a cause of action, it is not necessary to remit the petition for a fresh enquiry in that regard."

31. However, a distinction was drawn in the case of Y. Abraham Ajith & Others Versus Inspector of Police, Chennai & Another reported in (2004) 8 SCC 100, wherein the term "cause of action" in relation to criminal jurisprudence has been described in paragraph nos. 13 to 17, which are quoted herein-under:

> "13. While in civil cases, normally the expression "cause of action" is used, in criminal cases as stated in Section 177 of the Code, reference is to the local jurisdiction where the offence is committed. These variations in etymological expression do not really make the position different. The expression "cause of action" is therefore not a stranger to criminal cases.
>
> 14. It is settled law that cause of action consists of bundle of facts, which give cause to enforce the legal inquiry for redress in a court of law. In other words, it is a bundle of facts, which taken with the law applicable to them, gives the allegedly affected party a right to claim relief against the opponent. It must include some act done by the latter since in the absence of such an act no cause of action would possibly accrue or would arise.
>
> 15. The expression "cause of action" has acquired a judicially settled meaning. In the restricted sense cause of action means the circumstances forming the infraction of the right or the immediate occasion for the action. In the wider sense, it means the necessary conditions for the maintenance of the proceeding including not only the alleged infraction, but also the infraction coupled with the right itself. Compendiously the expression means every fact, which it would be necessary for the complainant to prove, if traversed, in order to support his right or grievance to the judgment of the Court. Every fact, which is necessary to be proved, as distinguished from every piece of evidence, which is necessary to prove such fact, comprises in "cause of action".

16. The expression "cause of action" has sometimes been employed to convey the restricted idea of facts or circumstances which constitute either the infringement or the basis of a right and no more. In a wider and more comprehensive sense, it has been used to denote the whole bundle of material facts.

17. The expression "cause of action" is generally understood to mean a situation or state of facts that entitles a party to maintain an action in a court or a tribunal; a group of operative facts giving rise to one or more bases for sitting; a factual situation that entitles one person to obtain a remedy in court from another person. (Black's Law Dictionary a "cause of action" is stated to be the entire set of facts that gives rise to an enforceable claim; the phrase comprises every fact, which, if traversed, the plaintiff must prove in order to obtain judgment. In "Words and Phrases" (4th Edn.) the meaning attributed to the phrase "cause of action" in common legal parlance is existence of those facts, which

give a party a right to judicial interference on his behalf."

32. Consequently, Section 27 (c) is like an exception to the provisions contained in Section 27 (a) 27 (b) of the Act of 2005. The "cause of action" may not necessarily accrue at a place covered by Section 27 (a) or Section 27 (b) of the Act of the 2005. The provisions contained in Section 27 (a) and Section 27 (b) of the Act are relatable to the principle of territorial jurisdiction, which is the place where the contingencies enumerated in Section 27 (a) and Section 27 (b) of the Act that may arise within the territorial jurisdiction of a particular Court and that will become the guiding factor for deciding the place of suing by the aggrieved person.

33. With the aforesaid analysis when the facts of the present case are examined the Court finds that the revisionists have taken a two fold plea for filing the complaint in the competent Court at Rampur. Firstly, it is alleged that since the revisionists are temporarily residing at Rampur, therefore, the Court at Rampur will have the jurisdiction to try the complaint as per the mandate of Section 27 (a) of the Act. Secondly, it has also been averred that the cause of action to file a complaint accrued at Rampur and therefore, the Court at Rampur is the competent Court to hear the complaint of the revisionists as per Section 27 (c) of the Act of 2005. Lastly, on the principle of equity it has been stated that if the applicant is residing at Aligarh, there can hardly be any reason for filing the complaint at Rampur, when the distance between the two is 160 kilometers and the presence of the revisionists are required in the Court on every day as the complaint is to be tried in the same manner, as provided for deciding an application under Section 156 (3) Cr.P.C.

34. The appellate court has allowed the appeal filed by the opposite party no.1 by holding that the revisionists herein reside at Aligarh and therefore, the D.V. Petition could not have been filed by the revisionists at Rampur. The court below further concluded that there is nothing on the record to show that the revisionists herein are temporarily residing at Rampur nor there is any such material on the record to show that any cause of action has accrued to the revisionists at Rampur.

35. However, upon scrutiny of the impugned order passed by the appellate Court, this Court finds that the court below has erred in law in allowing the preliminary objection filed by the opposite party no.2. The appellate court has not recorded any specific finding regarding the material on the record on the basis of which it came to the conclusion that the court at Rampur has no jurisdiction to try the complaint. Admittedly, except for a legal plea raised on behalf of the opposite party no.2 no such material was filed by the opposite party no.2 before the appellate court on the basis of which it could even be presumed that the petition was filed at Rampur by the revisionists on non-existent facts. The appellate court completely ignored the distinction between the provisions of Section 27 (a) as well as Section 27 (b) on the one hand and Section 27 (c) on the other hand. There was nothing on the record on the basis of which the plea of the opposite party no.2 that no cause of action has arisen at Rampur, could be believed at that stage of the proceedings.

36. For the reasons given herein-above, the present criminal revision succeeds and is allowed. The judgment and order dated 18th August, 2017 passed by the Additional Sessions Judge, Fast Track, Court No.1, Rampur in Criminal Appeal No. 17 of 2017 (Zakawat-ullah Khan vs. State of U.P. & Others) is hereby quashed. The trial court i.e. Additional Chief Judicial Magistrate, Rampur is

directed to decide the Complaint Case No. 246 of 2016 (Zeba Khan & Others vs. Zakawat-ullah Khan), expeditiously within a period of two months from the date of production of a certified copy of this order.

(Rajeev Misra, J.) Order Date :- 14.11.2018 Sushil/-